

Chaldale Harbor District

A RESOLUTION OF THE BOARD OF HARBOR COMMISSIONERS OF THE CHALDALE HARBOR DISTRICT, A PUBLIC PORT AUTHORITY AND MARINA OPERATOR ON THE PACIFIC NORTHWEST COAST, ADOPTING A ~~REVISED MOORAGE TARIFF; ESTABLISHING RULES FOR ADMINISTRATION OF THE PERMANENT MOORAGE WAITING LIST; ADOPTING SCHEDULE C (OFFER AND SKIP PROCEDURES); AND REPEALING TARIFF RESOLUTION 2014-02 IN ITS ENTIRETY.~~

Recitals

WHEREAS, the Chaldale Harbor District (the "District") owns and operates a small-craft harbor comprising 1180 permanent moorage slips in five basins, of which two are covered (Ledgport and Vessbank) and three are open (Eastwey, Gullwing, and Salmonberry); and

WHEREAS, demand for permanent moorage within the District has exceeded supply continuously since 2004, and the District maintains a waiting list of applicants ranked by application date which, as of the date of this resolution, numbers approximately 2,300 applicants; and

WHEREAS, the Board of Harbor Commissioners (the "Commission") finds that the prior tariff did not adequately distinguish covered from open moorage, did not bill consistently on the foot-month basis used throughout the region, and did not provide a uniform procedure for making slip offers to waiting-list applicants or for passing over ("skipping") applicants who could not be served; and

WHEREAS, the Commission held public hearings on the proposed tariff on 15 January 2019 and 26 February 2019, and considered written comments received through 1 March 2019;

NOW, THEREFORE, BE IT RESOLVED by the Board of Harbor Commissioners of the Chaldale Harbor District as follows:

Section 1. Definitions

As used in this resolution and its schedules:

1. "Applicant" means a person or entity whose application for permanent moorage has been accepted and whose position on the waiting list is held by payment of the annual retention fee.
2. "Basin" means one of the five moorage basins of the District: Ledgport and Vessbank (covered basins) and Eastwey, Gullwing, and Salmonberry (open basins).
3. "Foot-month" means the product of the billable length of a vessel or slip in feet and the number of months billed; moorage charges under this tariff are calculated on a foot-month basis unless expressly stated otherwise.
4. "Billable length" means the vessel's length overall (LOA) as measured at check-in, rounded up to the nearest whole foot, or the nominal length of the assigned slip, whichever is greater.
5. "Offer" means a written offer of permanent moorage in an identified slip made to an applicant in waiting-list rank order.
6. "Skip" means the administrative act of passing over the next-ranked applicant when making an offer, for one of the four reason codes set out in Schedule C.
7. "Skip justification file" means the contemporaneous file assembled by counter staff documenting the basis for each skip, as described in Schedule C, paragraph C-5.
8. "Workable slip" means a vacant slip whose posted length, beam, and basin type match the applicant's vessel particulars and stated preferences as recorded at check-in.

Section 2. Moorage Rate Schedule

2.1 Covered moorage. Monthly moorage for slips in the covered basins (Ledgport and Vessbank) shall be charged at \$9.85 per foot-month for vessels in the Non-Commercial Monthly rate class. Covered slips are limited to vessels of 40 feet billable length or less; no covered slip in the District exceeds 40 feet.

2.2 Open moorage. Monthly moorage for slips in the open basins (Eastwey, Gullwing, Salmonberry) shall be charged at \$7.10 per foot-month for the Non-Commercial Monthly rate class.

2.3 Other rate classes. Commercial Monthly moorage shall be charged at 1.35 times the applicable covered or open rate. Annual and Semi-Annual moorage shall be charged at the applicable monthly rate times twelve (12) or six (6) less a four percent (4%) prepayment allowance. Guest moorage shall be charged at the daily rate posted at the moorage counter. Liveaboard moorage carries the surcharge set out in Schedule A.

2.4 Billing basis. All recurring moorage is billed on a foot-month basis: the billable length in feet multiplied by the number of months in the billing period. Dock measurements taken at check-in are rounded up to the nearest whole foot and recorded on the moorage agreement measurement block.

Section 3. Waiting List Administration

3.1 Rank order. Applicants shall be ranked by the date and time the application was received, earliest first. Rank is not transferable except as provided in Section 3.4 (joint ownership succession).

3.2 Annual retention. Each applicant shall pay an annual retention fee of \$75.00 to hold position on the waiting list. The District shall mail or transmit an annual confirmation to each applicant each December; an applicant whose retention fee is not received within forty-five (45) days of the confirmation mailing shall be removed from the waiting list.

3.3 Preferences. Each applicant shall record basin preference, minimum and maximum acceptable slip length, and covered/open preference. Preferences may be amended in writing at the moorage counter and are effective on the date amended.

3.4 Vessel particulars. Each applicant shall record vessel name, hull identification number, vessel type, hull material, length overall, beam, and draft. Amendments to vessel particulars shall be recorded in the vessel particulars register maintained at the moorage counter and are effective on the date recorded.

Section 4. Offers of Moorage; Schedule C Adopted

4.1 Offer order. When a slip becomes vacant and available for offer, the Harbormaster shall cause offers to be made to applicants in waiting-list rank order, beginning with the highest-ranked applicant whose recorded preferences and vessel particulars match the slip.

4.2 Response window. An applicant receiving an offer of a covered slip shall respond within ten (10) calendar days of the date of the offer letter. An applicant receiving an offer of an open slip shall respond within fourteen (14) calendar days. An offer not accepted within the response window expires.

4.3 Schedule C. The Commission adopts Schedule C, Offer and Skip Procedures, attached hereto and incorporated by this reference. Schedule C establishes the four and only four reason codes under which an applicant may be skipped, the documentation required for each skip, and the disposition of skipped applicants.

Section 5. Schedule C -- Offer and Skip Procedures

C-1 Skips in general. An applicant shall be skipped only where counter staff cannot make a bona fide offer to that applicant consistent with this resolution. Each skip shall be assigned exactly one of the following four reason codes:

1. vessel-fit -- the applicant's recorded vessel particulars (length, beam, or draft) do not fit the vacant slip as posted, or the vessel exceeds the covered-basin limit of 40 feet where the vacancy is a covered slip;
2. not-current -- the applicant's annual retention fee, moorage account, or required insurance or registration documentation is not current as of the date the slip is worked;
3. declined-prior-offer -- the applicant has declined, or allowed to expire, a prior offer made under this resolution and has not restored eligibility for the slip class now vacant;

4. preference-mismatch -- the vacant slip does not match the applicant's recorded basin, length, or covered/open preferences.

C-2 No other grounds. A skip entered for any reason other than the four codes in paragraph C-1 is void, and the offer shall be tendered to the applicant as if the skip had not occurred.

C-3 Record of skip. Each skip shall be recorded in the skip event register on the date the slip is worked, showing the applicant's rank, the slip offered, the reason code, and the initials of the clerk entering the skip.

C-4 Skip justification file. For each skip, counter staff shall assemble a skip justification file containing: (a) a cover sheet showing the applicant identifier, the slip worked, the date, and the reason code; (b) the supporting record establishing the reason (for example, the recorded vessel particulars relied on for a vessel-fit skip, or the account ledger relied on for a not-current skip); and (c) any correspondence with the applicant.

C-5 Effect of skip. A skipped applicant retains waiting-list rank and application date. A skip is not a declined offer and does not count toward the two-decline rule of Section 3 of this resolution.

C-6 Measurement at check-in. Before any offer is made, the vessel particulars of record shall be those measured at check-in and rounded up to the nearest whole foot. Counter staff shall measure length overall at the dock using the District's measuring rail and shall record the measurement on the applicant's check-in form.

Section 6. Retention Fee; Purge and Reinstatement

6.1 Purge. Applicants removed for nonpayment of the retention fee shall be notified in writing at the address of record. The waiting list shall be purged annually following the confirmation mailing cycle.

6.2 Reinstatement. An applicant removed under Section 6.1 may petition for reinstatement within twelve (12) months of removal upon payment of all accrued retention fees plus a reinstatement fee of \$150.00. Reinstated applicants recover their original application date.

Section 7. Schedule A -- Rate and Fee Table

7.1 The following rates are adopted for the Non-Commercial Monthly rate class, stated per foot-month. Rates for other classes derive from these as provided in Section 2.3.

Rate class / charge	Covered (Ledgport, Vessbank)	Open (Eastwey, Gullwing, Salmonberry)
Non-Commercial Monthly, per foot-month	\$9.85	\$7.10
Commercial Monthly multiplier	1.35 × base	1.35 × base
Annual prepayment allowance	4% of annualized charge	4% of annualized charge
Guest moorage, daily, per foot	\$0.85	\$0.75
Liveaboard surcharge, monthly	\$95.00	\$95.00
Electricity, metered	at cost + 8% admin	at cost + 8% admin

7.2 Administrative fees: waiting-list application, \$100.00; annual retention fee, \$75.00; retainer list fee, \$75.00; reinstatement fee, \$150.00; late payment fee, \$25.00 or 1.5% of the overdue balance, whichever is greater; returned payment fee, \$35.00; key fob replacement, \$20.00.

7.3 Billable length is measured at the dock at check-in and rounded up to the nearest whole foot. Where a vessel's measured length exceeds the posted slip length, the measured length governs the foot-month charge.

Section 8. Schedule B -- Slip Inventory by Basin

8.1 The District's permanent moorage inventory is 1180 slips, distributed by basin and type as follows. Covered slips are limited to 40 feet billable length; no covered slip exceeds 40 feet.

Basin	Type	Slips	Size range (ft)	Services
Ledgport	Covered	260	24-36	Water, 30A/50A power
Vessbank	Covered	240	24-40	Water, 30A/50A power
Eastwey	Open	240	24-50	Water, 50A power, pump-out
Gullwing	Open	230	20-60	Water, 50A power, pump-out
Salmonberry	Open	210	28-80	Water, 100A power, pump-out
Total		1180		

Section 9. General Provisions

9.1 Severability. If any provision of this resolution or its schedules is held invalid, the remainder shall not be affected.

9.2 Repealer. Tariff Resolution 2014-02 and all amendments thereto are repealed as of the effective date.

9.3 Annual review. The Harbormaster shall present the waiting-list census, the offer and skip counts, and the revenue by rate class to the Commission each November, and shall recommend rate adjustments when operating costs, occupancy, or the receivables balance warrant.

9.4 Effective date. This resolution shall take effect 1 April 2019, the customary start of the regional boating season, which runs April through October on this part of the coast.

ADOPTED by the Board of Harbor Commissioners of the Chaldale Harbor District at a regular meeting held 12 March 2019, by the following vote: AYES: Whitlock, Barmore, Nystrom, Pell, Laskin (5). NOES: none. ABSENT: none.

President of the Board: Arlene Whitlock, President, Position 2

Attest: Dolores Ivers, District Clerk / Commission Secretary